

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

GLOBAL KINGS LOGISTICS / KAMORDEEN A. GANIU,
Complainant

v.

MEDITERRANEAN SHIPPING COMPANY (USA) INC.,
Respondent.

DOCKET NO. 26-09

Served: August 21, 2026

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ON MOTION TO DISMISS AND MOTION TO AMEND COMPLAINT

I. Introduction and Procedural Background

On June 10, 2026, the Commission issued a Notice of Filing of Complaint and Assignment, stating that Global Kings Logistics / Kamordeen A. Ganiu had (“Global Kings”) filed a complaint alleging that Mediterranean Shipping Company (USA) Inc. (“MSC USA”) had violated 46 U.S.C. §§ 41102(c), and 46 C.F.R. part 545, by issuing invoices that improperly consolidated charges and lacked necessary information, and other acts or omissions of Respondent.

On July 3, 2026, Respondent moved to dismiss the complaint against it and filed a memorandum in support of the dismissal (“Dismissal Motion”). On July 6, 2026, *pro se* Complainant filed an opposition to the motion to dismiss and in the alternative, motion to amend. (“Dismissal Opposition”). On July 13, 2026, Respondent filed a reply to Complainant’s Opposition to the Dismissal Motion (“Dismissal Reply”).

On July 20, 2026, Complainant filed a motion for leave to file a proposed verified first amended complaint (“Amended Complaint Motion”) to revise the violations alleged and add a new respondent. On July 27, 2026, Respondent filed a reply to the Complainant’s motion to amend the complaint (“Amended Complaint Opposition”). On July 28, 2026, Complainant filed a reply to Respondent’s opposition to motion for leave to amend complaint (“Amended Complaint Reply”).

For the reasons set forth below, Complainant’s motion to amend the complaint is granted, and Respondent’s motion to dismiss is denied as moot. The Office of the Secretary is requested to serve the Amended Complaint on both Respondents.

II. Motion to Amend Complaint

The proposed amended complaint adds MSC Mediterranean Shipping Co. S.A. (“MSC”) as a party. In addition, it alleges violations of 46 U.S.C. §§ 41104(a)(14), 41104(a)(15), 41104(d), 41104(f), and 41102(c), together with 46 C.F.R. §§ 541.5 and 541.6. Amended Complaint at 2.

Complainant states that “this motion adds MSC S.A. as the disclosed carrier and principal while retaining MSC USA as the disclosed agent that issued the challenged invoice and later pursued collection in New York.” Amended Complaint Motion at 1. Complainant argues that Commission Rule 66 favors a corrected and materially more definite pleading; adding MSC S.A. as an additional Respondent, while retaining MSC USA, is the appropriate procedural vehicle; the amendment pleads non-futile claims; the motion supersedes rather than repeats the incomplete alternative request; and the Secretary should serve the allowed amended complaint on both respondents. *Id.* at 3-4.

Respondent MSC USA asserts that Complainant’s motion should be denied as MSC USA’s motion to dismiss is still pending and therefore the request to amend is premature and may result in additional motions practice. Amended Complaint Opposition at 1. Additionally, Respondent notes that in addition to adding a party, the motion adds several additional causes of action. *Id.* at 2.

Complainant filed a reply and requested leave to file the reply. Leave is granted to file the reply. The reply contends that Respondent does not identify a recognized basis for denying the leave to amend and contends that granting the amendment now reduces, rather than increases, motions practice. Amended Complaint Reply at 1-3.

Commission Rule 66(a) provides in pertinent part that amendments “will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issues, without opportunity to reply to such amended pleading and to prepare for the broadened issues.” 46 C.F.R. § 502.66(a).

The rules do not provide criteria for evaluating whether to grant or deny a motion to amend a complaint. However, Commission Rule 12 provides that “for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. § 502.12. Under Federal Rule 15(a)(1)(B), “a party may amend its pleading once as a matter of course” within 21 days after service of a responsive pleading. F.R.C.P. 15(a)(1)(B). After that period, an amended pleading is permitted with opposing party’s written consent or leave of court, which should be freely given when justice so requires. F.R.C.P. 15(a)(2). “Denial of leave to amend therefore constitutes an abuse of discretion unless the court gives sufficient reason, such as futility of amendment, undue delay, bad faith, dilatory motive, undue prejudice, or repeated failure to cure deficiencies by previous amendments.” *Bancoult v. McNamara*, 214 F.R.D. 5, 8 (D.D.C. 2003) (citations omitted); *see also Foman v. Davis*, 371 U.S. 178, 182 (1962).

The amended complaint was filed early in the proceeding, by a *pro se* party, to better articulate the basis for the complaint. While permitting the amendment may result in additional

motions practice, there is no appropriate basis presented to deny the request. Accordingly, Complainant will be allowed to amend its complaint.

III. Motion to Dismiss

Respondents' dismissal motion addresses Complainant's allegations in the original complaint. As Complainant has been granted permission to file their amended complaint which replaces the original complaint, Respondents' motion to dismiss the original complaint is now moot. Respondents' motion to dismiss is, therefore, denied. However, their arguments are summarized briefly below.

Respondent's dismissal motion argues that the Commission lacks personal jurisdiction over Respondent; Count II of the complaint should be dismissed because Complainant fails to state a claim for relief under 46 C.F.R. Part 545; Count III of the complaint should be dismissed because Complainant fails to state a claim for relief under the applicable Ocean Shipping Reform Act burden of proof; and to the extent the Commission has jurisdiction over Respondent, Count IV of the complaint should be dismissed because Complainant fails to state a claim for relief under any legal standard. Dismissal Motion at 2-5.

Complainant responds by arguing that MSC USA has not carried its burden to obtain dismissal with prejudice; MSC USA's operational conduct defeats its passive-agent theory at this stage; Respondent's older agency cases do not control this record; the Shipping Act provisions preserve the claims or, at minimum, support amendment; if the proper carrier must be added, amendment is the proper remedy; limited jurisdictional discovery is appropriate before any dismissal; and Counts II, III, and IV should not be dismissed with prejudice; the initial order supports development of the case rather than immediate termination with prejudice. Dismissal Opposition at 10-20.

Respondent asserts that Complainant misunderstands the motion to dismiss; Complainant's argument regarding the burden of proof is irrelevant; Complainant's arguments regarding 46 C.F.R. Part 545 and 46 U.S.C. § 41104 are irrelevant; and limited jurisdictional discovery is not appropriate. Dismissal Reply at 1-4.

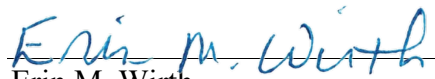
The amended complaint adds a respondent and asserts that MSC USA is being named due to actions taken in its name. Amended Complaint at 2. The amended complaint also amends the sections of the Shipping Act alleged to be violated. *Id.* at 4-5. The amended complaint addresses a number of issues raised by the motion to dismiss. The issues raised in the motion to dismiss do not constitute a basis to deny the motion to file an amended complaint. These issues are now moot or will be worked through as the case develops.

IV. Order

Upon consideration of the record herein, the arguments of the parties, and the conclusions and findings set forth above, it is hereby

ORDERED that the motion to amend the complaint be **GRANTED**. The Secretary is requested to serve the amended complaint on both Respondents. Respondents should file a response to the amended complaint within 25 days of service. It is

FURTHER ORDERED that Respondents' motion to dismiss be **DENIED AS MOOT**.

A handwritten signature in blue ink, reading "Erin M. Wirth", is written over a horizontal line.

Erin M. Wirth

Chief Administrative Law Judge